

26NWCV02419 26NWCV02419

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-07

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Case Number: 26NWCV02419 Hearing Date: August 7, 2026 Dept: P

Ceja, et al. v. Salguero, 26NWCV02419

This motor vehicle-personal injury action was filed on July 21, 2026. Plaintiffs Salvador Rodríguez Ceja, Graciela Gonzalez Vargas, and Adriana Rodríguez Gonzalez (Plaintiffs) now apply ex parte for a nunc pro tunc order to backdate the filing date of their complaint.

Counsel for Plaintiffs James A. Allaire states: "July 1, 2026, my office e-filed the Summons and Complaint in this lawsuit via One-Legal... On July 2, 2026, we received electronic confirmation that the documents were successfully submitted. The confirmation status stated: 'E-Filing under Court Clerk Review.'" (Allaire Decl., ¶ 3.) Mr. Allaire states that on July 7, 2026, the filing was rejected due to a clerical mismatch in the names. (Allaire Decl., ¶ 7.) Mr. Allaire's provides a document reflecting a confirmation depicting order details for a filing submitted with a vendor, One Legal, on July 1, 2026 at 5:35 PM. (Allaire Decl., Exh. A.)

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).) "[A] paper is deemed filed when it is deposited with the clerk with directions to file the paper." (Rojas v. Cutsforth (1998) 67 Cal.App.4th 774, 778.) When a filing has an insubstantial defect, "the clerk should file the complaint and notify the attorney or party that the perceived defect should be corrected at the earliest opportunity." (Id., at p. 777.) Examples of such defects include failing to submit a form required by local rules and listing the wrong courthouse or division. (Id., at p. 777-778.)

Here, Plaintiffs purport to provide a "e-filing acknowledgment of receipt from the Clerk's office" which states that "E-Filing under Court Clerk Review." (Allaire Decl., ¶ 3.) However, Plaintiffs' attachment appears to be a confirmation with One Legal rather than with the Court's Clerk. The document does not confirm filing with the Court or that it is under Court review. Since a paper may be deemed filed once it is deposited with the Clerk for filing and the Court's authority is limited to clerical errors arising from the Court, a document between Plaintiffs and One Legal does not suffice to warrant a nunc pro tunc order.

Accordingly, Plaintiffs' ex parte application is DENIED without prejudice. Moving party to give notice.